§ 11–6.806 Procedures.

§ 11–6.806–1 Restricted solicitations.

Requests for determinations pursuant to § 1–6.806–1(b)(1) of this title shall be submitted to Commandant (FS) for review and further transmittal to the Commandant for his approval.

§ 11–6.806–2 Method of purchase.

In lieu of the authority cited in § 1–6.806–2 of this title, the following is applicable for Coast Guard procurement under this section: Contracts entered into pursuant to conventional negotiation shall cite exceptions (2) through (17) of 10 U.S.C. 2304(a), as appropriate. Where such negotiation authority is not applicable or where contracts are entered into pursuant to the Balance of Payments Restricted Advertising method of procurement, 10 U.S.C. 2304(a)(1) shall be cited as negotiation authority.

Subpart 11–6.50—Purchases From Communist Areas

1. The heading of Subpart 11–6.50 is revised, as set forth above.

§ 11–6.5001–1 [Amended]

2. Section 11–6.5001–1 *General policy* is amended by changing in two places the phrase from "Soviet-controlled areas" to "communist areas".

§ 11–6.5001–2 [Amended]

3. The heading of § 11–6.5001–2 is revised to read "Communist areas", and the introductory clause is amended by changing the phrase from "Soviet-controlled areas" to "communist areas".

4. The introductory sentence of §11–6.5001–3 is amended to read as follows:

§ 11–6.5001–3 Certain supplies of foreign origin.

The following supplies, if of foreign origin and however processed, shall be presumed to have originated from communist (Chinese) areas and shall not be acquired for public use unless: (a) Such supplies have been lawfully imported into the United States, its possessions, or Puerto Rico; or (b) the supplies are acquired directly from the countries indicated:

* * * * *

5. The heading of § 11–6.5001–4 is revised, and the introductory sentence is amended to read as follows:

§ 11–6.5001–4 Certain supplies from Hong Kong, Macao, and communist areas.

The following supplies, however processed, which are or were located in or transported from or through Hong Kong, Macao, or any communist area (see § 11–6.5001–2) shall be presumed to have originated from communist (Chinese) areas, and shall not be acquired for public use unless such supplies have been lawfully imported into the United States, its possessions, or Puerto Rico:

* * * * *

6. Section 11–6.5001–5 is revised to read as follows:

§ 11–6.5001–5 Supplies from China, North Korea, North Vietnam, or Cuba.

All supplies, however processed, which are or were located in or transported from or through China (as described in § 11–6.5001–2), North Korea, or North Vietnam shall be presumed to have originated from communist (Chinese) areas, and all supplies, which are or were located in or transported from or through Cuba or are made or derived in whole or in part of any goods which are the growth, produce or manufacture of Cuba shall be presumed to have originated from communist (Cuba) sources, and no such supplies shall be acquired for public use unless supplies have been lawfully imported into the United States, its possessions, or Puerto Rico.

§ 11–6.5002 [Amended]

7. Section 11–6.5002 *Exceptions* is amended by changing in the first sentence of paragraph (b) the phrase from "Soviet-controlled areas" to "communist areas" and by changing in the last sentence of paragraph (b) the phrase "approval of the Secretary" to "approval of the Commandant".

8. Section 11–6.5003 is revised to read as follows:

§ 11–6.5003 Contract clause.

(a) Except as provided in paragraph (b) of this section, the following clause shall be included in all contracts for supplies, services, or construction, where acceptance is to take place outside the United States, its possessions, and Puerto Rico.

COMMUNIST AREAS (OCTOBER 1966)

(a) Unless he first obtains the written approval of the contracting officer, the contractor shall not acquire for use in the performance of this contract:

(i) Any supplies or services originating from sources within the following communist areas:

[here include list from § 11–6.5001–2]

(ii) Any supplies, however processed, which are or were located in or transported from or through China (as described in (i) above), North Korea, North Vietnam, or Cuba;

(iii) Any of the following supplies, if of foreign origin and however processed, unless acquired directly from the countries indicated for particular supplies:

[here include list from § 11–6.5001–3]

(iv) Any of the following supplies, however processed, which are or were located in or transported from or through Hong Kong, Macao, or any communist area listed in (i) above:

[here include list from § 11–6.5001–4]

(b) The contractor agrees to insert the provisions of this clause, including this paragraph (b), in all subcontracts hereunder.

The contracting officer may omit subparagraphs (iii) or (iv) or both from the clause above, or particular supplies from the lists of supplies thereunder, to the extent that he determines that such subparagraphs or particular supplies are clearly not applicable to the end product or services contracted for.

(b) The requirements of paragraph (a) of this section do not apply to purchase orders for small purchases (see Subparts 1–6.3 of this title and 11–6.3 of this part) where there is other reasonable assurance of compliance with the policy set forth in this subpart.

(Sec. 633, 63 Stat. 545; 14 U.S.C. 633)

Dated: May 29, 1968.

W. J. SMITH,
Admiral, U.S. Coast Guard,
Commandant.

[F.R. Doc. 68–6796; Filed, June 7, 1968; 8:49 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4435]

[AA–562]

ALASKA

Partial Revocation of Executive Order No. 3406 of February 13, 1921

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 3406 of February 13, 1921, which reserved lands in Alaska for lighthouse purposes is hereby revoked so far as it affects the following described lands:

120. CAINES HEAD, RESURRECTION BAY, SEWARD

Shown on U.S. Coast and Geodetic Survey Chart No. 8527 Sheet No. 86, at approximate latitude 59°59′ N., longitude 149°24′ W. Beginning at a point on low waterline about 2,400 feet westerly from the southeastern extremity of the point, and from which a rock awash about 200 yards off shore bears S. 22° W. true; thence N. 22° E. 4,500 feet, more or less, to an intersection with low waterline, then following the winding of low waterline to point of beginning.

The area aggregates approximately 200 acres.

2. Until 10 a.m. on September 3, 1968, the State of Alaska shall have a preferred right to select the lands as provided by section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 339), and the regulations in 43 CFR 2222.9. After that time the lands shall be open to the operation of the public land laws generally, including the mining and mineral leasing laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m. on September 3, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. A lighted aid to navigation has been erected by the United States upon the lands. The light is located 5,590 yards,